

15. *Duan v. Easy Way Logistics Inc.*, Case No. CIVSB2325601
Motion to Amend Judgment
8/3/26, 9:00 a.m., Dept. S-17

The Court is inclined to **CONTINUE** to allow further attempts at service.

In this case, Plaintiff prevailed before the Labor Commissioner against Defendant Easy Way Logistics, Inc. (Easy Way), as his employer, on wage-and-hour claims. (See Req. Clerk Enter Judgment, Oct. 4, 2023.) Notably, Easy Way is a California corporation. Now, Plaintiff seeks to amend the judgment to include Hongguang Liu under an alter-ego theory. (See *Toho-Towa Co. v. Morgan Creek Prods., Inc.* (2013) 217 Cal. App. 4th 1096, 1107 [discussing narrow circumstances under which corporate form is disregarded].)

No service has yet been effectuated; although, Plaintiff now seeks leave to serve by publication.

16. *Fouse v. Behavior Autism Therapies, LLC*, Case No. CIVSB2428112
Plaintiff's MTC Further Responses to Special Interrogatories, Set One (SROG1)
Plaintiff's MTC Further Responses to Requests for Production, Set One (RFP1)
8/3/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the SROG1: The Court would **DENY** the motion as untimely.

As to the RFP1: The Court would **GRANT** the motion as to RFP1, numbers 7-9. Defendant Behavioral Autism Therapies (BAT) is **ORDERED** to serve all responsive time and payroll records and contracts, subject to the right to redact employees' names and personal information but maintain an identified, within twenty days of this ruling. Further, Defendant BAT is ordered to pay sanctions in the amount of \$2,460, likewise due within twenty days of this ruling.

Case Summary

This is a putative wage-and-hour class action. Plaintiff alleges that he was an hourly, non-exempt employee of Defendant in California and that Defendant's wage-and-hour practices resulted in violations applicable to the putative class. As such, on September 13, 2024, he filed suit alleging violations relating to (1) overtime; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage statement accuracy; and (7) reimbursements, as well as (8) a cause of action for violation of the unfair competition law (UCL). The UCL claim is underpinned by the purported wage-and-hour violations. Importantly, on January 20, 2026, a First Amended Complaint (FAC) was filed in order to substitute in a new representative Plaintiff.

Relevant here, before the original plaintiff Fouse substituted out, he propounded Special Interrogatories, Set One (SROG1) and Requests for Production, Set One (RFP1). Defendant BAT served responses on April 30, 2025; July 14, 2025; July 25, 2025; and September 4, 2025. (Van Dyke Decl., ¶¶15-6, 9-10, 15 & Exhs. A-B, E-F, I.)

Analysis

As to SROG1: The motion to compel further responses to SROG1, numbers. 1-4 is untimely. The last supplemental response was served by mail on September 4, 2025. Forty-five days plus 5 days for mailing provides a deadline of October 24, 2025. his deadline is mandatory and jurisdictional in the sense that the court is without authority to rule upon the motion to compel, except to deny it. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410; *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) Plaintiff did not file and serve his motion until March 19, 2026, which is well past the deadline. He further produces no evidence of any written agreement to extend the deadline. Thus, the Court would deny.

As to RFP1: RFP1, numbers 7-8 requested all timesheets and pay records for the covered employees. Request number 9 asked for all written agreements or contracts between BAT and the covered employees between September 13, 2020, and the present.

In its original and second supplemental responses, BAT asserted objections only. Then, in the first and third supplemental responses, BAT stated that it would provide the requested records. Although under the third supplemental responses Defendant indicated the records were produced, Plaintiff states no records were included. Finally, under the recently served fourth supplemental responses, to RFP1, numbers 7-8, Defendant reverts to objections, and, as to RFP1, number 9 it states that it has produced a copy of former Plaintiff Fouse's agreements and is not aware of contracts between itself and the covered employees.

Preliminarily, the response to RFP1, number 9's response appears disingenuous in the context of the arbitration motion where Defendant contends it holds arbitration agreements with every covered employees.

Ultimately, however, Defendant agreed to produce the responsive time and payroll records, and contracts. It does not offer any justification or right to rescind that agreement to comply. Furthermore, in class action wage-and-hour litigations, these records are relevant and bear on issues for certification analysis. The contracts are relevant based on claimed defense that all employees agreed to arbitrate their disputes. Defendant BAT can redact personal information of the other employees, as certification has not yet occurred, but leave a means to later identify which record goes to which employee if certification is later granted. Thus, the Court would compel.
